

Mukesh Tomar v. State of U.P. — s.135 FIR not quashed; arrest and compounding

High Court of Judicature at Allahabad · Division Bench · 16 September 2014 · Criminal Misc. Writ Petition No. 16278 of 2014 · s.135 FIR not quashed; CrPC 41-A arrest; compounding under Supply Code

HEADNOTE

The Allahabad High Court refused to quash an FIR under Section 135 of the Electricity Act, 2003 that disclosed a cognizable offence. It directed that if arrest is to be made for an offence not entailing a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC, and that compounding, if available, may be sought under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mukesh Tomar filed a criminal writ petition seeking to quash the FIR dated 9 March 2014 registered as Case Crime No. 89 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Pilkhuwa, District Hapur. He had not been arrested. Counsel submitted that even if the charge were proved, a sentence of more than seven years could not be awarded, so arrest should not be mechanical, and that the alleged offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash, arrest, compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not to be quashed. Where arrest has not been made and the offence will not entail a sentence of more than seven years, the police must, if arrest is to be effectuated, comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1